

✓ पञ्चाशत् दुर्ग ?

Why Jurisdiction of Courts?

Ans

Courts exercise derivative sovereign power, & jurisdictional limits reflects the boundaries of that sovereignty.

- Territorial Principle
- Personality based jurisdiction (nationality & parties)
- protective jurisdiction (protecting state interests)
- universal jurisdiction (for crime against humanity)
- Effects Doctrine. (Extraterritorial conduct causing domestic harm)

These overlapping bases create complex jurisdictional matrices requiring sophisticated choice of law.

- Mediation नाई alternative dispute resolution मा न्हावेर Mainstream dispute resolution बनानुयो।

- Modern understanding recognizes that jurisdiction is a substantive allocation of power dressed in procedural clothing.

— Hybrid character

- This transcends formalistic categories to address jurisdiction's real world impacts on rights, remedies, & justice.

— The procedural/substantive distinction often breaks down. It is simultaneously procedural & substantive because:

procedurally → it determines how " & "where" of adjudication.
substantively → it determines "whether" & "what" rights exist.

Evolving Trends of Writ:

— A writ is a formal order issued by court, particularly higher courts, commanding or prohibiting certain actions.

— Relative Relaxation of strict procedural requirements.

— Court new focus on substantial justice rather than technical procedural compliance.

— Previously, only aggrieved parties could approach courts for writs, now public-spirited citizen can file writ petitions on the behalf of unable.

— Expansion of rights through interpretation.

— Recent Trend — Covid-19 pandemic (Virtual hearings adoption, e-filing, video conference)

- Challenges

- Balancing state security concerns with individual privacy rights
- Balancing Judicial Activism & Judicial Restraint
- Fast Track Procedures

- Writ vs. Other Cases.

- Remedy: Constitutional Vs Ordinary
- Access: Direct Access to Higher Court Vs. Lower Courts.
- Procedure: Flexible Vs. Strict
- Speed of Disposal: Prioritized..
- Decided primarily on affidavits & legal arguments without elaborate evidence.
- Jurisdiction → Extra Ordinary.

Miscellaneous

- Court of Record can initiate contempt of Court through the very petition. No separate petition is required to be filed.

- Doctrine of analogy of law.

- A court can apply civil procedure & criminal case & vice versa in exceptional situation to secure the Ends of Justice

lacuna gaps

→ Judicial Innovation

- व्यवस्था होइन अवस्था परिवर्तन गर्नुपर्छ।
- न्यायाको दीप निम्नु हुँदैन। त्रिपालपुरी संचारकर्ता।
 - Gen Z revolution
 - विद्रोही पनि अदालत खुल्छ

- न्याय ज्ञास्यता कुरा हो। यो नै सार्थक (अधिकार) हो।

हीरो मार्ग

- अधिकारको जनआस्था सल्लोत 'गर्गुल' / जेष्ठ गोरखा प्रज्ञासाई आध्यात्मिकता - दिने।

→ People's impression on court system बनाउने। राजनीतिक दल अदालत विपक्षको भागो भागुन कुहेका थिए, गन्हाएका थिए।

What are we leaving generation next?

Tentacles of Political Parties.

Gen Z अवलोकन

- सौहार्दनाक्षि संसारसुख

Chief popular gain.

अहंकार अयकर हुन्छ

Gen Z पुस्ताको पवित्र उद्देश्य पराजित हुनु हुँदैन।

safety net

PM Musical Chair जस्तो भएको।

मुकरी भन्ना - पुराण सांसदलाई + पजरी युविद्या + pension

सुकादी अम्

युन्याण्ड सुन्दर हुन्छ नि। - 1st Gen Z revolution

युविद्या

लोकलज जनआवाज सुन्ने, बसेवाद गर्ने र सामाजिक खोज्ने प्रणाली हो।

- Sustina Karki

सांसद विघटनसँगै Gen Z को स्फूर्त विघटन भयो। प्रमदा कार्यकारीको

संविधानभन्दा राजनीतिक स्वरकारमा खडा रहे।

संविधानको अभिविधनताको प्रश्न

नेपालले संविधानमाथि प्रहार देखे, नेतृत्व

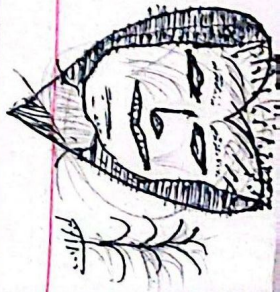
सुखिनुपर्ने देखेनन्।

- Gen Z Revolution.

Gen Z अग्रसरवादीलाई अवलोकित र आत्मकारको लगभगको

- किन हुन सकेन सरकारले सम्पत्तिको विभा

- सासकको कारण जान्नेभरि सरकारमा संविधान



Principles of Criminal Justice:

Bachan Singh V. State of Punjab (1980)

→ 'Rarest of Rare' Doctrine for death penalty.

Gudikanti Narasimhulu V.

Public Prosecutor (1978)

→ Refusing Bail without reasonable grounds violates Art. 21.

Shatrughan Chauhan V.

UOI (2014)

→ prolonged delays in executing death sentences causes immense mental agony, violating article 21.

Mallikarjun Kodagali

vs

State of Karnataka (2019)

→ court affirmed victims' right to engage lawyers of their choice to assist the prosecution, strengthening the adversarial process.

State of Punjab

V.

Prem Sagar (2008)

→ judgement stressed moving away from retributive justice towards reformative approaches, particularly for young offenders.

Challenges:

- Admissibility of electronic evidences,
- privacy rights in investigation
- use of technology in trials.
- virtual hearings in } covid-19.
- decongestion of prisons }

Through creative interpretation & judicial activism, the Court substantially humanized India's Nepal CJS, though significant gaps between principle & practices persist.

Mohd. Arif.

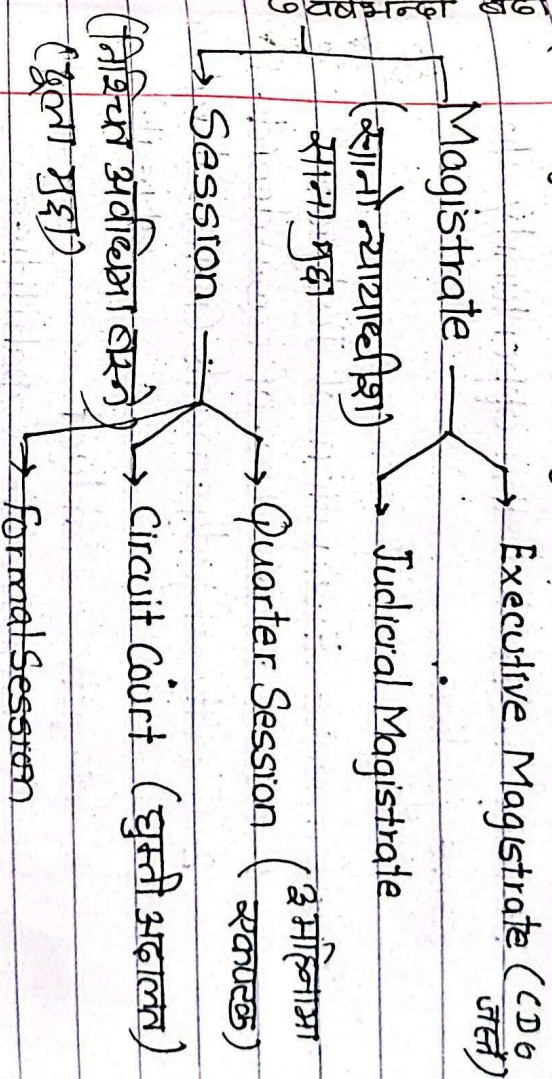
V.

Registrar, SC (2014)

→ SC mandated review petitions in depth penalty cases be heard in open court by three-judges benches, ending the practice of deciding such matters in chambers without oral arguments.

Judge-Popⁿ Ratio.
Case Adjournments - स्थगना

Magistrate → origin "master"



सन् १८६१ को CoCP ले Session Court लाई जिल्लाको प्रमुख फौजदारी अदालतको रूपमा स्थापना गर्‍यो।

Session Court ऐतिहासिक पुष्कम्भिस र दर्तागान अभ्यास फौजदारी मुद्दा: Regular Permanent Court हो।
Magistrate Court → HC → SC.

- State Judicial Service ~~for~~ Magistrate / DJ
Higher " " ~~for~~ District DJ

- Judicial career in Nepal ~~serv~~ offers
stability, respect & the opportunity to
serve justice.

- Performance Evaluation of Judges:-

1. Disposal Rate (no. of case decided)
2. Quality of judgements (reversal rate in
appeals)
3. Integrity & Conduct
4. Administrative Capabilities
5. Punctuality & Work Ethics.
6. Track Record of Judges

- Professional Challenges:

- Heavy workload
- Transfer policies
- Work-life balance issues
- Dealing with influential litigants.

• कलियुगम् :-
अद्य प्रधान बुद्धिभयो धर्म प्रधान बुद्धि भएन ।
[धनबुद्धि V. धर्मबुद्धि]

• CJS V. VJS

1. Zero - Sum Perception

→ Strengthening Victim Rights
necessarily weakness defendant
rights.

This false dichotomy ignores
successful balanced models.

• Sentencing algorithm.

• Bench Shopping

• Global Health ✓

Health X

• Global Intellectual Property ✓ IP X

• Cyber Jurisprudence

• Feminism:

1. RTV - Estd. legal personality of woman - 1st wave
2. Right to be voted. 11th wave
3. Intersectionality - 11th wave

• Multitude factors must be considered in
determining what fairness is.
Fairness Calculus:

सहायन :

When in doubt, disclose, consult
& provide reasons.

Myths &

• MISCONCEPTIONS regarding each topic
of syllables.

• Exceptions

Misconception :

Argument :

To stand by things decided.



- Stare Decisis is not a mindless / blind adherence to the past; ^{putting} it is sophisticated judicial policy that serves twin goals:

1. Stability ^{certainty} → Predictability ^{Uniformity}
2. Adaptability → Exercise of Discretion

Stare Decisis is not about legal certainty & consistency, not rigidity.

- न्यायिक विवेकमाद बन्दी बनाउनु होइन ।

— सिद्धि

- Judicial Discipline.

- ^{Theory} Principle — comes from experimentation
- Doctrine — " " practice / general acceptance.
- Principle —

• Precedent = Ratio Decidendi of a past case + ^{Authority} of the court.

- महामाजमनी सुगन्धी र मलमल जस्तो नराम होला भनीको अलमलमा पो परे ।

→ उच्च अदालतको Ratio Decidendi SC को लागि precedent